

DISCOVER BANK VS. DRISKILL

CASE NUMBER: 25CVG-00740

Tentative Ruling on Motion to Set Aside Default: Defendant Lee Driskill moves to set aside default judgment pursuant to CCP 473(b) on the grounds of surprise and excusable neglect. The Motion was properly noticed, and Plaintiff Discover Bank has not filed an opposition.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, Defendant has submitted sufficient evidence in the form of a sworn declaration that his failure to file a responsive pleading was due to excusable neglect, based on a sudden and severe illness. Defendant has also filed a proposed answer demonstrating meritorious defenses. Defendant has met his burden under CCP § 473(b).

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant is ordered to submit a proposed order. Defendant is granted fifteen days leave from today’s date to file and serve his responsive pleading. The proposed answer is not deemed filed.

FIRST-CITIZENS BANK & TRUST COMPANY VS. RISE CUSTOM APPAREL LLC, ET AL.

CASE NUMBER: 26CV-0209773

Tentative Ruling on Motion to Strike: Plaintiff moves to strike the Answer filed by Defendant Rise Custom Apparel, LLC, enter default, and impose sanctions. The grounds are that Defendant is impermissibly proceeding in pro per. The matter is properly noticed and is unopposed.

Meet and Confer. Code of Civil Procedure 435.5(a) provides that before filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. The Declaration of Plaintiff’s counsel indicates only that a meet and confer letter was sent. This does not establish compliance with the statute.

Standard for Motion to Strike. A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. Code Civ. Proc., § 437(a).